



POLICE DEPARTMENT

March 5, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Lieutenant Jonathan Rivera :

Tax Registry No. 949550 :

Bronx Auto Larceny Unit :

Case No.

2023-28440

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Deanna Everett-Johnson & Amanda Rodriguez, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Lieutenant Jonathan Rivera, on or about October 17, 2019, at approximately 1453 hours, while assigned to the 52 Precinct and on duty, in the vicinity of Bainbridge Avenue and East 211th Street, Bronx County, used force without police necessity in that, with the intent to cause serious physical injury, he intentionally fired a shot from his firearm at § 87(2)(b) causing serious physical injury.

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

New York Penal Law §120.10(1)

ASSAULT IN THE FIRST
DEGREE

2. Lieutenant Jonathan Rivera, on or about October 17, 2019, at approximately 1453 hours, while assigned to the 52 Precinct and on duty, in the vicinity of Bainbridge Avenue and East 211th Street, Bronx County, abused his authority as a member of the New York City Police Department, in that he intentionally placed or attempted to place § 87(2)(b) in reasonable fear of serious physical injury or death by pointing his firearm at § 87(2)(b) and threatening to shoot § 87(2)(b) without police necessity.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by A.G. 304-06,
Page 1, Paragraph 1)

PUBLIC CONTACT–
PROHIBITED CONDUCT

New York Penal Law §120.14(1)

MENACING IN THE
SECOND DEGREE

Procedural History

The central issue in this disciplinary proceeding is whether Sergeant Jonathan Rivera¹ engaged in sanctionable misconduct when, on October 17, 2019, he fatally shot § 87(2)(b) during a car stop. Also at issue is whether Respondent menaced § 87(2)(b) during the encounter.

In an administrative disciplinary hearing of this nature, this tribunal would typically be required to determine whether police officers followed the Department's rules and regulations as they handled an encounter. Here, however, CCRB failed to preserve the statute of limitations

¹ Respondent was promoted to the rank of lieutenant on September 30, 2022.

(“SOL”) and then served Respondent 30 months after the extended COVID SOL² had expired.

As reflected in the record:

- October 17, 2019: Date of incident
- January 24, 2020: Department released segments of BWC footage to general public
- September 2020: Attorney General Report released³
- April 17, 2021: 18-month SOL expired
- June 11, 2021: Force Investigation Division (“FID”) Report issued⁴
- December 2, 2021: 26-month Extended COVID SOL expired
- December 8, 2021: CCRB received FID file
- May 10, 2022: CCRB received additional BWC footage
- May 10, 2023: CCRB Board voted to substantiate charges
- June 4, 2024: Respondent was served with charges

The tribunal is troubled by this timeline and the apparent failure of multiple entities to adhere to statutory deadlines, particularly in a case involving a fatal police shooting.⁵ In most instances, the law prohibits the commencement of a disciplinary case where the service date is missed. An exception to this statutory deadline is permitted pursuant to the Civil Service Law where the misconduct “complained of and described in the charges would, if proved in a court of appropriate jurisdiction, constitute a crime.”⁶ Relying on this crime exception to the limitations

² Due to the COVID-19 pandemic, Gubernatorial Executive Order 202.8 tolled the statute of limitations for all court proceedings in New York, including administrative trials. This gave all litigants, including CCRB, an additional seven months to serve the charges.

³ The New York Attorney General’s Office Special Investigations and Prosecutions Unit (SIPU) investigated the matter and concluded that they could not bring criminal charges because “the use of deadly force could not be proven to be unjustified beyond a reasonable doubt.” (CCRB Ex. 6) The report can be accessed at: [https://ag.ny.gov/sites/default/files/sipu_§87\(2\)\(b\)_final.links_.pdf](https://ag.ny.gov/sites/default/files/sipu_§87(2)(b)_final.links_.pdf)

⁴ FID’s finding was that Respondent’s “application of force was consistent with existing law and values of the Department.” FID did find a number of tactical violations, including when “the sergeant leaned over the front passenger leaving him in a tactically unsafe situation as the equipment secured on his gunbelt was left exposed.” (CCRB Ex. 7 at 61)

⁵ The tribunal notes that the CCRB Board voted to substantiate the charges approximately 17 months after the expiration of the extended SOL. The charges were then served 30 months after the expiration of the extended SOL. Although CCRB’s Brief states that FID produced its official investigatory file about a week after the extended statute of limitations expired, significant information had already been released to the public prior to that date. For example, the Department published relevant segments of the BWC footage capturing the shooting on January 24, 2020. In addition, the Attorney General’s Report, which also included links to relevant BWC footage, was released to the public in September 2020. Both were available at least 15 months before the expiration of the extended SOL. Even though the production of FID’s official investigatory file was delayed, with the information already obtained, and which in fact was entered into evidence at this hearing, efforts could have been made to preserve the statute of limitations and then amend the pleadings if additional information was later produced.

⁶ New York Civil Service Law Section 75(4)

period, however, frequently results in a greater evidentiary burden for the administrative prosecutor. Unlike disciplinary cases where charges are timely served, when the crime exception clause is invoked it may be insufficient to prove misconduct by establishing that an officer violated Department rules. Instead, the administrative prosecutor must establish, by a preponderance of the evidence, the specific elements of each crime charged as set forth in the New York State Penal Law.⁷ In sum, when charges are not served by the mandated deadline, an NYPD disciplinary hearing is distorted into a quasi-criminal proceeding. *See Disciplinary Case Nos. 2021-23558 & 23559* (April 12, 2024)

More importantly, the general laxity in compliance demonstrated here deprived this tribunal, and the Department, of the opportunity to evaluate this member of service's compliance with tactical guidelines and Department rules. In fact, as taught in the Police Academy, NYPD guidelines often impose a greater level of professional accountability than the Penal Law.⁸ Unfortunately, this is not the first time a CCRB case has come before this tribunal in this compromised procedural posture. *See id.; Disciplinary Case No. 2018-19274* (Aug. 19, 2019) It is this tribunal's expectation that it be the last. Institutional efforts must be made to remedy this dereliction of duty by all parties involved.

Introduction

The above-named member of the Department appeared before me on November 12 and 13, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges.

⁷ *See Disciplinary Case No. 2018-19274* (Aug. 19, 2019), citing *Aronsky v. Bd. of Ed.*, 75 N.Y.2d 997, 1000 (1990)

⁸ Police Student Guide, Ch. 4, *Use of Force* p. 5 (Oct. 2019)

The CCRB called § 87(2)(b)⁹ as a witness and entered into evidence documents and videos of the incident, including Body-Worn Camera footage. Respondent called Detectives Michelle Almanzar and Edward Barrett as witnesses, and testified on his own behalf. The parties also submitted post-trial legal briefs on December 11 and 12, 2024, respectively. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of Specification 1 and recommend that he be terminated from his employment with the Department. Specification 2 is dismissed as untimely.

ANALYSIS

I. Summary of Facts

On October 17, 2019, Police Officers Michelle Almanzar and Edward Barrett¹⁰ were working as Neighborhood Coordination Officers ("NCO") assigned to the 52 Precinct in the Bronx. Respondent was the supervising Neighborhood Coordination Sergeant. The primary goal of NCOs is to lead community engagement efforts and develop crime strategies that address community concerns. That morning, Police Officers Almanzar and Barrett started their tour of duty participating in the Coffee with a Cop program – an NYPD initiative aimed at giving

⁹ The tribunal listened to and considered the testimony of § 87(2)(b) who was qualified at trial as an expert in police use of force and police training, tactics, and procedures. (Tr. 41, 49; CCRB Ex. 9) The purpose of an expert witness is to provide the factfinder with information it does not have or aid the court in its understanding of the issues at bar. The weight to be given such testimony lies within the judge's sole discretion. See *People v. Cronin*, 60 N.Y.2d 430 (1983); *Enu v. Sobol*, 171 A.D.2d 302 (3d Dept. 1991) After careful consideration of the trial record in its entirety, the tribunal based its findings, not on the expert's testimony or opinions, which focused on police tactics, but on the video evidence, exhibits and testimony of the fact witnesses.

¹⁰ Barrett and Almanzar have since been promoted to the rank of detective.

neighborhood residents an opportunity to interact with police officers and raise concerns. (Tr. 140, 171-72, 223; CCRB Ex. 7 [FID Report] at 23, 27)

At approximately 1100 hours, Officers Almanzar and Barrett resumed their patrol duties in a marked RMP. Respondent, their NCO supervisor for the day, joined them on patrol later that afternoon. P.O. Barrett was the RMP operator, Respondent was positioned in the front passenger seat and P.O. Almanzar was in the rear. All were in uniform. (Tr. 141, 152, 184, 223-24; CCRB Ex. 7 at 23, 27)

At approximately 1449 hours, as the RMP traveled eastbound on East 211th Street, it passed a 2018 Volkswagen Atlas with Virginia plates traveling in the opposite direction. P.O. Barrett indicated to Respondent and P.O. Almanzar that the driver was not wearing a seatbelt. P.O. Barrett made a U-turn and pulled up next to the driver side of the vehicle, which had stopped at a traffic light on the corner of Bainbridge Avenue. P.O. Barrett then activated the RMP's lights and sirens. According to Respondent, the driver appeared to look "confused," so he pointed, indicating for the driver to stop. The Volkswagen Atlas turned onto Bainbridge Avenue and pulled over. P.O. Barrett parked the RMP behind the Volkswagen. The vehicle had two occupants: the driver, § 87(2)(b) and the front passenger, § 87(2)(b) (Tr. 152, 173-74, 185, 223-24; CCRB Ex. 7 at 14-15, 20, 28)

Before exiting the RMP, all three uniformed members of service activated their body-worn cameras ("BWC"). Much of the ensuing interaction between the officers and the vehicle occupants was recorded and is not in dispute. (CCRB Ex. 7 at 21, 24, 28; CCRB Exs. 1 [Resp. BWC], 2 [Barrett BWC], 3 [Almanzar BWC])

Body-worn camera footage captures Police Officers Barrett and Almanzar approaching the driver side of the Volkswagen Atlas as Respondent positions himself by the passenger door.

§ 87(2)(b) and P.O. Barrett politely greet each other. Upon request, § 87(2)(b) hands over documentation and indicates that the Volkswagen Atlas “is a rental.” When P.O. Barrett requests his driver’s license a second time, § 87(2)(b) produces one. P.O. Barrett then informs him that he was stopped for not wearing a seatbelt. § 87(2)(b) interjects that both he and his passenger always fasten their seatbelts because he had previously been ticketed for that exact violation. P.O. Barrett acknowledges that the vehicle occupants have their seatbelts on and replies that, “it looked like” they were not wearing seatbelts, maybe “[be]cause it’s black on black” – apparently referring to the color of the seatbelt and § 87(2)(b) shirt. Respondent seems to speculate that the officer may have thought that “because the seat is low....” (Tr. 143, 153-54, 174, 186-88, 224-25, 259; CCRB Ex. 1 at 0:35-1:08; CCRB Ex. 2 at 0:32-1:09)

P.O. Barrett then asks, “Where are you guys headed now?” § 87(2)(b) explains that he left his girlfriend’s home to pick up his daughter in Washington Heights. § 87(2)(b) complies with P.O. Barrett’s request to lower the vehicle’s rear windows. P.O. Almanzar moves the rear window shade to look inside. (CCRB Ex. 1 at 1:09-1:25; CCRB Ex. 2 at 1:10-1:1:25)

The driver’s license § 87(2)(b) produced was from Ohio and the name on it was § 87(2)(b). Unbeknownst to the officers, § 87(2)(b) is § 87(2)(b) brother. P.O. Barrett notes that the license is from Ohio. § 87(2)(b) clarifies that he “just moved” and is awaiting “a new one.” When P.O. Barrett queries about the name and birthdate denoted therein, § 87(2)(b) confirms both. (CCRB Ex. 2 at 1:28-1:43; CCRB Ex. 7 [FID Report] at 19; Tr. 154, 174-75)

As P.O. Barrett utilizes his Department cellphone to conduct a warrant search, Respondent initiates a casual conversation about the vehicle, commenting on its size. Both § 87(2)(b) and the passenger amiably report that the vehicle is “horrible.” When Respondent asks if it is their first winter driving it, the passengers remind him that it is only “a rental.” (CCRB Ex. 1 at

1:49-2:15; Tr. 189, 258) During this casual conversation, P.O. Barrett's database search yielded multiple active warrants associated with § 87(2)(b).¹¹ At this point, P.O. Barrett leans to the left across the hood of the vehicle and says to Respondent, "Hey Sarge, he popped, so I'm just going to talk to him real quick." Respondent replies, "Alright cool." (CCRB Ex. 1 at 2:15-2:18; CCRB Ex. 7 at 15, 58; Tr. 154, 175, 191, 225, 259)¹²

At approximately 1451 hours, Officer Barrett instructs § 87(2)(b) to exit the vehicle, explaining, "I'm just gonna talk to you real quick." § 87(2)(b) immediately complies and stands between the vehicle and the open door. P.O. Barrett tells § 87(2)(b) "You're not in trouble man, but I just got to talk to you . . . come back here... You're good. Just make sure your car is in park." P.O. Barrett then asks, "Do you have anything you're not supposed to have?" § 87(2)(b) responds, "Nah, I don't have nothing." P.O. Barrett again asks, "You sure?" § 87(2)(b) immediately replies, "Positive." (CCRB Ex. 1 at 2:18-2:33; CCRB Ex. 2 at 2:19-2:35; Tr. 244, 175-76, 192-93, 226; CCRB Ex. 7 at 15)

P.O. Barrett then explains that he is going to "pat § 87(2)(b) down real quick." As P.O. Barrett turns away from the driver to hand over the documentation to P.O. Almanzar, § 87(2)(b) steps back into the vehicle, pulls the door, grabs the steering wheel and reaches for the gearshift. Police Officers Barrett and Almanzar unsuccessfully attempt to pull § 87(2)(b) out of the vehicle as P.O. Almanzar yells, "What are you doing?" and "Put it in park, put it in park." (CCRB Ex. 1 at 2:34-2:49; CCRB Ex. 2 at 2:36-2:50; Tr. 145, 176, 194-95, 226)

¹¹ The FID report references five open warrants associated with § 87(2)(b) - two for disorderly conduct, one for reckless driving, one for littering and one for spitting. (CCRB Ex. 7 at 58)

¹² Unbeknownst to the officers, at that time § 87(2)(b) was on federal probation for criminal sale of a controlled substance. (Tr. 7, 12; CCRB Ex. 7 at 9; Resp. Ex. R) The FID report also mentions that § 87(2)(b) had an active SAP warrant for driving without a license. (CCRB Ex. 7 at 9)

§ 87(2)(b) actively resists the officers' attempt to take him into custody and an approximately 92-second struggle ensues. At approximately 1452 hours, Respondent leans into the front passenger window and deploys his Taser at § 87(2)(b) for four consecutive, five-second cycles. (CCRB Ex. 7 at 16, 32, 56, 59) § 87(2)(b) screams as Respondent yells, "Pull him out. Pull him out." The passenger raises his hands as this transpires. § 87(2)(b) shouts, "Quítamelo" and removes the Taser prongs from his upper right chest. He then grasps the steering wheel with his left hand and the gearshift with his right hand. (CCRB Ex. 1 at 2:41-2:55; CCRB Ex. 2 at 2:40-2:56; Tr. 159, 197-99, 227)

P.O. Barrett stands between the driver and the open door as he punches § 87(2)(b) with his right fist and again attempts to pull him out. P.O. Almanzar yells, "Put it in park, put in in park, Eddie." § 87(2)(b) who is 5' 10" and weighs 246 lbs., braces himself and refuses to comply. (CCRB Ex. 3 at 2:55-3:05; CCRB Ex. 5 at 2) At approximately 1452 hours, Respondent opens the front passenger door and climbs onto the passenger sitting in the front seat. Respondent then transitions the Taser to his left hand, draws his service weapon with his right hand, points it directly at § 87(2)(b) and shouts, "Yo, if I have to end up fucking shooting you bro . . . Yo boss, I'm going to fucking shoot you." With Respondent stretched out on top of him, the front-seat passenger implores, "Take my seatbelt off. . . take my seatbelt off," and then pleads, "Don't shoot me. Don't shoot me...." P.O. Barrett grabs § 87(2)(b) head and attempts to pull him out of the vehicle. Both police officers continue to yell, in sum and substance, "Put it in park. Put it in park." When that does not work, P.O. Barrett attempts to pull § 87(2)(b) hands away from the steering wheel while again repeating, "Park. Park. Park." Respondent answers, "It's in park." (CCRB Ex. 1 at 2:56-3:22; Tr. 178, 203, 228-30, 271, 275)

Respondent then holsters his firearm and uses hand strikes against § 87(2)(b) who questions, "Why you hitting me?" P.O. Barrett continues his efforts to remove § 87(2)(b) as Respondent commands, "Get the fuck up." P.O. Almanzar repeatedly shouts the order, "Get out the car." The passenger continues to repeat, "Don't shoot me." At approximately 1453 hours, P.O. Almanzar calls for backup. Respondent, who is laid across the front seat passenger, strikes § 87(2)(b) near the head and neck area with the butt of the Taser. They continue struggling for control of the gearshift. P.O. Almanzar orders § 87(2)(b) out of the vehicle and yells, "Yo Sarge, park, park, park." Respondent's BWC seems to fall off in the vehicle and is deactivated at 14:53:08 hours. (CCRB Ex. 1 at 3:23-3:36; CCRB Ex. 2 at 3:25-3:50; CCRB Ex. at 3:22-4:00; CCRB Ex. 7 at 16; Tr. 146, 204, 230-31)

At about 14:53:47 hours, the vehicle's engine revs and it surges forward several feet. P.O. Almanzar shouts, "Oh my god." When the vehicle abruptly stops, P.O. Almanzar grabs the driver's side door with her right hand. P.O. Barrett continues to struggle with § 87(2)(b) At approximately 14:53:50 hours, the vehicle accelerates in reverse for several feet. This makes P.O. Almanzar release the door and causes P.O. Barrett's BWC to dislodge. P.O. Barrett is pushed back by the vehicle door and spins away a few feet toward the rear of the Atlas. At approximately 14:53:52 hours, the vehicle stops and the door slams shut. P.O. Almanzar yells, "Sarge," and P.O. Barrett immediately lunges back toward the driver side door. At approximately 14:53:53 hours, P.O. Barrett stands beside the open driver side window as he places his left hand on the front door handle. According to Respondent, at that moment the vehicle's gearshift is in park. (CCRB Ex. 2 at 3:47-4:11; CCRB Ex. 3 at 4:05-4:12; CCRB Ex. 4 [bystander video] at 00:01-00:21; CCRB Ex. 7 at 16; Tr. 147, 178-80, 205-08, 231-32, 288)

Also at 14:53:53 hours, and as P.O. Barrett stands by the open driver side window grabbing the door handle, Respondent discharges one round from his service firearm into § 87(2)(b) chest at point blank range. § 87(2)(b) screams, "Ahh, he shot me." (CCRB Ex. 3 at 4:12-4:16; CCRB Ex. 4 at 00:22-00:24; CCRB Ex. 7 at 17, 60; Tr. 180, 232-33, 287)

P.O. Barrett immediately pulls § 87(2)(b) out of the car and handcuffs him. Although P.O. Barrett testified that he did not recall, P.O. Almanzar indicated that he immediately administered CPR. At approximately 1454 hours, Respondent calls for an ambulance. At 1455 hours, Respondent crouches down and says, "start doing CPR." P.O. Almanzar asks whether he needs gloves. As Respondent continues crouching, he seems to put on the gloves and starts administering CPR. Someone is heard saying, "Stay with me . . . stay with me, man." At 1456 hours, the BWC footage captures Respondent standing up with bloodied gloves on his hands. (CCRB Ex. 3 at 4:40-4:42, 5:41-5:56; CCRB Ex. 4 at 00:32-00:56; CCRB Ex. 4A; Tr. 149, 180-81, 233; CCRB Ex. 7 at 17, 60) At approximately 1456 hours, EMS arrives to take over CPR. A medic declares, "I have a pulse." P.O. Almanzar utters, "Oh, thank God." (CCRB Ex. 3 at 7:00-7:34) While the EMT is performing CPR on § 87(2)(b) Respondent mutters, "Fuck." P.O. Almanzar states, "I called an 85, you were stuck in the car." Respondent replies, "The engine was on, man. I was fighting. My hand was getting tired." (CCRB Ex. 3 at 07:52-08:03)

EMS transported § 87(2)(b) to § 87(2)(b) Hospital. He was pronounced deceased at 1518 hours. (CCRB Ex. 7 at 17) His death certificate listed his manner of death as a homicide and the cause of death as a gunshot wound to the torso. (CCRB Ex. 7 at 53) A nurse at the emergency room recovered the following from § 87(2)(b) pants pocket: (i) alleged narcotics packaged in a clear Ziploc bag; (ii) alleged ecstasy (MDMA) packaged in a green Ziploc bag; and (iii) alleged narcotics wrapped in two bundles. The two Ziploc bags containing the alleged illegal narcotics

were sent to the Police Laboratory and tested positive for cocaine and methamphetamine. The two bundles tested negative for controlled substances. (CCRB Ex. 7 at 17-18) The toxicology report issued on October 18, 2019, detected methamphetamine, THC, and THC-COOH in § 87(2)(b) system. (CCRB Ex. 5; CCRB Ex. 7 at 53)

Respondent, P.O. Barrett and P.O. Almanzar were taken to § 87(2)(b) Hospital. Respondent was treated for a sprain to his right wrist and tinnitus. P.O. Almanzar was treated for tinnitus, pain to her left hand and elevated breathing. P.O. Barrett was treated for pain to both knees, cuts to his left hand and left elbow and tinnitus. (CCRB Ex. 7 at 18, 52)

2. Specification 1: Assault in the First Degree

CCRB seeks Respondent's termination for the fatal shooting of § 87(2)(b). As noted above, because Respondent was not served within the extended statute of limitations period, a finding of misconduct cannot turn on whether Respondent's actions violated tactics set forth in the Patrol Guide. Due to this procedural irregularity, in place of using the Departmental construct applied to most disciplinary hearings, CCRB has the burden of proving all elements of Assault in the First Degree by a preponderance of the evidence.¹³

Specification 1 mirrors New York Penal Law §120.10(1), which provides that "a person is guilty of assault in the first degree when, with intent to cause serious physical injury... he causes such injury to such person by means of a deadly weapon or a dangerous instrument." Therefore, CCRB has the burden of proving that:

¹³ It is well-established law that although CCRB must prove the elements of a crime under the Penal Law, it must do so by a preponderance of the evidence. This standard is much lower than what is required in criminal court proceedings: that is, proof beyond a reasonable doubt. See *Disciplinary Case No. 2018-19274* (Aug. 19, 2019), citing *Police Dept. v. Bakshi*, OATH Index No. 1471/97 (Oct. 2, 1997); see also *Dept. of Correction v. Salinas*, OATH Index No. 1375/24 (May 17, 2024), aff'd, NYC Civ. Serv. Comm'n Case No. 2024-0308 (Oct. 7, 2024); *Dept. of Correction v. Blanc*, OATH Index No. 2571/11 at 5 (Feb. 2, 2012); *Dept. of Correction v. Battle*, OATH Index No. 1052/02 at 7-9 (Nov. 12, 2002), citing *Aronsky v. Bd. of Education*, 75 N.Y.2d 997, 1000 (1990).

- i. Respondent, with intent to cause serious physical injury to § 87(2)(b) fired his service firearm; and,
- ii. The firearm discharge caused serious physical injury.

Respondent admits that he shot § 87(2)(b) but claims that he was legally justified in doing so. Specifically, the defense contends that the reason Respondent shot § 87(2)(b) was because he reasonably feared for the immediate safety of P.O. Barrett. Since the defense of justification has been interposed, CCRB has the additional burden of disproving, by a preponderance of the evidence, Respondent's asserted defense. *See People v. Steele*, 26 N.Y.2d 526, 528 (1970), *People v. Clark*, 129 A.D.3d 1, 36 (2d Dept. 2015)

There is no dispute that Respondent intentionally put his firearm to § 87(2)(b) chest and fired a single shot, fatally wounding § 87(2)(b). Accordingly, the elements of Penal Law §120.10(1) were established.

In dispute is whether Respondent was legally justified in using deadly force as that defense is defined in the Penal Law. Under New York Penal Law §35.15(2), "A person may not use deadly physical force upon another person ... unless: (a) the actor reasonably believes that such other person is using or about to use deadly physical force." The Penal Law further provides that an individual may not use deadly physical force in self-defense if they can safely retreat. Police officers, however, are exempt from this requirement if they are acting pursuant to Penal Law §35.30, which states in relevant part:

(1) A police officer or a peace officer, in the course of effecting or attempting to effect an arrest, or of preventing or attempting to prevent the escape from custody, of a person whom he or she reasonably believes to have committed an offense, may use physical force when and to the extent he or she reasonably believes such to be necessary to effect the arrest, or to prevent the escape from custody, or in self-defense or to defend a third person from what he or she reasonably believes to be the use or imminent use of physical force; except that *deadly physical force may be used for such purposes only when he or she reasonably believes that . . . (c) Regardless of the particular offense which is the subject of the arrest or attempted escape, the use of deadly physical force is necessary to defend the police*

officer or peace officer or another person from what the officer reasonably believes to be the use or imminent use of deadly physical force. [emphasis added]

It is uncontested that Respondent and his team had probable cause to lawfully arrest § 87(2)(b) based on the active warrants issued to the person whose license he handed over to the officers.¹⁴ It is further uncontested that § 87(2)(b) resisted arrest by ignoring numerous police orders, reentering his vehicle and actively struggling against the officers attempting to stop him from escaping. Therefore, the issue before this tribunal is whether CCRB disproved that Respondent's use of deadly force was "necessary" to defend against what he "reasonably believed" was the "imminent use of deadly physical force" by § 87(2)(b) against P.O. Barrett.

In New York State, the Court of Appeals has established that the standard for evaluating whether a justification defense is disproved requires both a subjective and an objective analysis.

As the Court explained in *People v. Goetz*, 68 N.Y.2d 96 (1986):

Thus, consistent with most justification provisions, [the Penal Law]¹⁵ permits the use of deadly physical force only where requirements as to triggering conditions and the necessity of a particular response are met.... As to the triggering conditions, the statute requires that the actor "reasonably believes" that another person either is using or about to use deadly force.... As to the need for the use of deadly physical force as a response, the statute requires that the actor "reasonably believes" that such is necessary to avert the perceived threat.

It is well-established law that in making such determinations, the "critical focus must be placed on the particular defendant and the circumstances actually confronting him at the time of the incident." See *People v. Douglas*, 29 A.D.3d 47, 50 (1st Dept. 2006), quoting *People v. Wesley*, 76 N.Y.2d 555, 559 (1990), citing *Goetz*, 68 N.Y.2d at 112-15. Courts are reluctant to closely second guess the "split second decisions" of officers in difficult circumstances. Instead,

¹⁴ At the time, the officers had no reason to suspect that the license § 87(2)(b) produced belonged to his brother.

¹⁵ As noted in the Attorney General's Report, the Court of Appeals has not directly defined the term "reasonably believe" in Penal Law §35.30, but has instead defined this term within the context of analyzing a parallel justification statute, Penal Law §35.15, which applies more broadly to all citizens invoking this defense. (CCRB Ex. 6 at 8-9)

the emphasis must be on whether an officer's conduct was objectively reasonable. *See Koeiman v. City of N.Y.*, 36 A.D.3d 451 (1st Dept. 2007), citing *Graham v. Connor*, 490 U.S. 386, 396 (1989)

As such, determining whether Respondent "reasonably believed" deadly physical force to be necessary to defend P.O. Barrett requires a two part analysis. First, Respondent must have *actually* believed that § 87(2)(b) was using or about to use deadly force against P.O. Barrett and that Respondent's own use of deadly physical force was necessary to defend that officer from imminent harm. Second, the tribunal must find that a *reasonable person* in Respondent's position would have believed that too.

a. Subjective Test

As noted above, the defense asserts that Respondent was justified in shooting § 87(2)(b) because he believed it was necessary to protect P.O. Barrett from the imminent danger of being crushed under the vehicle. Accordingly, the threshold inquiry focuses on Respondent's subjective belief. Specifically, this tribunal must decide whether, at the moment he shot § 87(2)(b) Respondent *actually* believed that the threat of deadly physical force against P.O. Barrett was imminent and that discharging his firearm was *necessary* to stop that peril.¹⁶ *See People v. McClellan*, 49 A.D.3d 1203, 1204 (4th Dept. 2008), quoting *Wesley*, 76 N.Y.2d at 559 (finder of fact "must first determine whether defendant 'actually believed that deadly physical force was necessary'") After careful review of the record in its entirety, this tribunal finds that the

¹⁶ As noted above, the legal standard requires that this tribunal evaluate Respondent's *actual* beliefs about what constituted imminent danger warranting deadly force. At trial, Respondent specifically asserted that his decision to discharge his firearm was based on an immediate fear for P.O. Barrett's life. During cross-examination, he was asked whether he was "also concerned that [he] might be injured." Respondent answered, "That was also a concern. But my primary concern was Detective Barrett" (Tr. 286) Respondent's post-trial brief also recognized the generalized danger resulting from § 87(2)(b) resistance, however, it underscored Respondent's trial testimony that the immediacy which justified the shooting was his belief that "any further movement of the car would seriously injure or kill Barrett. Discharging his firearm was the last resort and the only way to prevent such injury or death." (Respondent's Post-Trial Brief at 7) Accordingly, this analysis focuses on the immediate danger to P.O. Barrett, as articulated by Respondent.

preponderance of the credible evidence disproved that this was Respondent's actual belief when he discharged his firearm.

It is undisputed that after P.O. Barrett informed § 87(2)(b) that he was going to "pat him down," § 87(2)(b) quickly reentered the Volkswagen Atlas. He then grabbed the steering wheel and gearshift and attempted to escape. P.O. Barrett instantly stepped between § 87(2)(b) and the open driver side door and began pulling § 87(2)(b) out of the vehicle. § 87(2)(b) actively resisted by bracing himself with the steering wheel. At trial, Respondent testified that because P.O. Barrett was "interlocked" with § 87(2)(b) he worried that if the vehicle moved, it "would hurt somebody." (Tr. 227) As a result, Respondent deployed a Taser to momentarily immobilize § 87(2)(b) and give P.O. Barrett and P.O. Almanzar an opportunity to detain him.

When the Taser deployment failed, § 87(2)(b) again engaged the gearshift, even as the police officers continued fighting to remove him. According to Respondent, he had "no other option but to enter the vehicle... to try to stop him from using the drive shift to pull off and drag Barrett." (Tr. 229) At this point, P.O. Barrett was still "interlocked" with § 87(2)(b) as he struggled to extract him. (Tr. 228) Respondent testified that he also attempted to gain compliance by pointing his firearm at § 87(2)(b) and threatening to shoot him. Respondent asserted that he holstered his firearm once he placed the gearshift in park.

On the one hand, the record supports a finding that § 87(2)(b) active resistance during this encounter put all the members of service on the scene in a vulnerable position, particularly when P.O. Barrett was standing between the driver's seat and the open front door. The dispositive question here, however, is whether, when Respondent pulled the trigger, he actually believed that P.O. Barrett was in imminent danger of being crushed if the vehicle moved because he had fallen under the vehicle.

It is undisputed that immediately before the shooting, the vehicle's engine revved and it abruptly surged forward several feet with P.O. Barrett still positioned between the driver and the open door. Recognizing the risk, P.O. Almanzar cried out, "Oh my god." When the vehicle stopped, P.O. Almanzar grabbed the driver side door with her right hand as P.O. Barrett continued to struggle with § 87(2)(b). The vehicle suddenly accelerated in reverse and stopped after a few feet. This movement caused P.O. Almanzar to release the door and P.O. Barrett to be pushed back. P.O. Barrett spun away from the driver side door as it closed and, still standing, halted by the rear of the vehicle. P.O. Almanzar yelled, "Sarge,"¹⁷ and P.O. Barrett immediately lunged back to the driver side door, stood in front of its open window and placed his left hand on the door handle. Respondent testified that the gearshift was in park at that time. (Tr. 272, 288)

Just as P.O. Barrett reappeared by the open driver side window, Respondent fired a single shot, at point blank range, directly into the left side of § 87(2)(b) chest. Approximately two seconds had elapsed between the moment P.O. Barrett stumbled as the car accelerated in reverse and the moment Respondent discharged his firearm. According to Respondent, when the vehicle accelerated in reverse:

[The] door hit Barrett and Barrett goes flying out of my sight out of my view. I couldn't see him. And I feared the worst. I thought he was under the car. I thought...any movement was going to crush Barrett. And I made the decision to shoot one shot to his -- to his chest to mitigate and stop the threat I feared Barrett was underneath vehicle. . . . I thought ... any movement was going to crush Barrett. [A]t that moment, I didn't feel like I had any other option. (Tr. 231-32)

Few things are more difficult, yet more fundamental to the role of a trier of fact, than the task of attempting to reconstruct the most probable nature of a past event. While the law creates a framework within which such a task is accomplished, the courts have established that, "Resolution of questions of credibility and the weight of evidence is primarily the province

¹⁷ Respondent testified that he did not recall hearing P.O. Almanzar call out to him. (Tr. 282-83)

of the finder of fact, who has had the opportunity to see and hear the witnesses.” *Matter of Bennett v. Phillips*, 175 A.D.2d 934 (2d Dept. 1991), citing *People v. Gaimari*, 176 N.Y. 84 (1903) (“The memory, motive, mental capacity, accuracy of observation and statement, truthfulness and other tests of the reliability of witnesses can be passed upon with greater safety by those who see and hear than by those who simply read the printed narrative.”) In sum, credibility assessments of trial witnesses remain the exclusive province of the fact finder.

This tribunal does not take this responsibility lightly. It is only after a meticulous review of the complete record that it concludes that the preponderance of the credible evidence casts serious doubt on, and ultimately disproves, Respondent’s assertion that when he fired the fatal shot directly into § 87(2)(b) chest, he actually believed it was necessary to protect P.O. Barrett from imminent deadly force. Indeed, several key factors convinced this tribunal that Respondent’s testimony on this point was contrived.

First, Respondent’s reaction immediately after the shooting is not consistent with that of a sergeant who had just shot a subject to protect his officer from being “crushed” under a vehicle. For example, upon exiting the Volkswagen Atlas, Respondent does not inquire about P.O. Barrett, does not express surprise or relief that he was uninjured, nor does he make any assertion relating to that officer’s well-being or safety. Even making allowances for the shock of the moment, if P.O. Barrett’s safety was the reason for shooting the subject, it stands to reason that Respondent would have expressed that concern at the scene. His failure to do so does not comport with logic, common sense or basic human nature. As if to underscore this point, Respondent’s apparent indifference and silence in this regard contrasts sharply to P.O. Almanzar and P.O. Barrett, who repeatedly ask Respondent himself. “Sarge, you good?” (CCRB Ex. 3 at 5:14-5:16)

Second, as EMS is treating § 87(2)(b) Respondent mutters, "Fuck." P.O. Almanzar responds, "I called an 85, you were stuck in the car." Respondent explains, "The engine was on, man. I was fighting. My hand was getting tired." (CCRB Ex. at 7:58-8:02) Again, Respondent makes no reference to his fears about P.O. Barrett's safety.

Under New York State law, this type of excited utterance carries significant indicia of reliability because it is deemed to have been made:

... under the immediate and uncontrolled domination of the senses, and during the brief period when considerations of self-interest could not have been brought fully to bear by reasoned reflection.... [T]he utterance may be taken as particularly trustworthy (or, at least, as lacking the usual grounds of untrustworthiness), and thus as expressing the real tenor of the speaker's belief as to the facts just observed by him. *People v. Brown*, 70 N.Y.2d 513, 518 (1987), quoting *People v. Marks*, 6 N.Y.2d 67, 71 (1959).

Respondent's spontaneous statement, made less than four minutes after the shooting, raises serious doubts about his subsequent assertions that he shot § 87(2)(b) because he believed P.O. Barrett was in mortal danger. Instead, the logical inference is that his excited utterance constituted an admission that Respondent discharged his firearm because he was not able to control the subject and sought to terminate the encounter because, in his own words, he was "tired."

Third, although this tribunal recognizes that the intensity of the moments immediately following a shooting likely left Respondent in a distressed state of mind, his trial testimony supports a credibility finding that the plain meaning of his excited utterance warrants significant probative weight. Specifically, this tribunal is highly skeptical of Respondent's trial testimony attempting to clarify what he meant when he told P.O. Almanzar that his "hand was getting tired."

During cross-examination, Respondent was asked, “And isn't it true that you said to Detective Almanzar that your hand was tired *from fighting?*” [*emphasis added*] Respondent, defensively, rejoined:

Not from fighting. You are...so when I was... now I remember. When I was doing CPR, my hand got tired. And then part of CPR is to instruct other people to take over CPR for you when your arms get tired. You add other word saying from fighting. (Tr. 304)

After being shown the BWC footage recording his statement, Respondent doubled down by stubbornly asserting, “Right after the CPR, too. That’s right there. If you play it back more, I was just doing CPR.” (Tr. 305)

When viewed within the context of his conversation with P.O. Almanzar, the explanation Respondent provided at trial amounts to a non-sequitur. Put simply, it defies logic. P.O. Almanzar is quite obviously referring to the struggle in the vehicle when mentioning the radio call for backup. It is within this framework that Respondent answers that the “engine was on,” he was “fighting” and his hand was “tired.” Neither witness made any reference that would permit this tribunal to infer that they were discussing the administration of CPR. This tribunal finds that Respondent’s insistence at trial that he was referring to the stress of administering CPR when he said his hand was tired, is an after the fact fabrication created to conceal his actual motivation for using deadly force. Adding to this tribunal’s suspicion that Respondent was not forthright at trial is that he rendered aid for less than one minute and that he stopped, not because he followed his training to “instruct other people” to take over, but because EMS arrived. These facts make it even less likely that CPR was the actual cause of Respondent’s stated discomfort. (Tr. 233, 304; CCRB Ex. 3 at 5:45-6:35) Rather, it is more likely that his hand was tired as a result of his struggle with § 87(2)(b) which was his focus, and that he chose to use maximum force to end it.

It is also revealing that from the outset of their efforts to detain § 87(2)(b) Respondent verbalized his intent to shoot § 87(2)(b). As he first stretched out over the front seat of the vehicle, Respondent drew his service firearm, pointed it directly at § 87(2)(b) and shouted, "Yo, if I have to end up fucking shooting you bro . . . Yo boss, I'm going to fucking shoot you." Respondent articulated his mindset to use lethal force, and actually pointed his firearm directly at § 87(2)(b) even before the vehicle's sudden acceleration and P.O. Barrett's stumble. Indeed, it was only when P.O. Barrett was no longer at the door assisting with the extraction, that he followed through on his threat.

In sum, Respondent's carefully constructed departure from the truth could not be reconciled with the totality of circumstances and fell apart under the weight of the credible evidence. Respondent has an obvious interest in the outcome of this disciplinary hearing and a strong motive to present a version of events that justifies his actions. Moreover, his unabashed obstinacy on cross-examination raised serious questions about his credibility and judgment. Thus, this tribunal concludes that critical portions of Respondent's account were self-serving statements fabricated to minimize his culpability. This undermined his credibility and the truthfulness of his stated subjective belief that it was immediately necessary to discharge his firearm to protect P.O. Barrett.

This finding alone is sufficient to disprove the justification defense. Accordingly, this tribunal finds that the preponderance of the evidence disproved Respondent's defense and that he is guilty of the misconduct set forth in Specification 1.

b. Objective Test

Even if this tribunal had credited Respondent's assertion that at the time of the shooting he actually believed P.O. Barrett was under the vehicle and in imminent mortal danger, the law

would still require an assessment to determine whether that belief was objectively reasonable. Indeed, this is because an honest belief, no matter how genuine, may still be unreasonable. A careful review of the record has led this tribunal to conclude that, under these specific circumstances, Respondent's stated belief and subsequent actions were not objectively reasonable. In short, the preponderance of the evidence disproved that a reasonable sergeant under similar circumstances would have believed that the deadly force used was necessary to avert imminent danger. *See People v. Castillo*, 2024 N.Y. Slip Op. 05817 (Nov. 21, 2024), quoting *People v. Collice*, 41 N.Y.2d 906, 907 (1977); *Goetz*, 68 N.Y.2d at 115

Analyzing the reasonableness of a police officer's actions "requires careful attention to the facts and circumstances of each particular case." This tribunal is mindful that it is often "reasonable for police to move quickly if delay would gravely endanger their lives or the lives of others," and that this "is true even when, judged with the benefit of hindsight, the officers may have made some mistakes." *See City & Cnty. of San Francisco v. Sheehan*, 575 U.S. 600, 612 (2015); *Graham v. Connor*, 490 U.S. 386, 396 (1989)

There are, however, limits to the deference given to police officers acting under these circumstances. The critical focus must be on what a reasonable sergeant in these particular circumstances and "having defendant's background and experiences would conclude." *See Wesley*, 76 N.Y.2d at 559; N.Y. Crim. Jury Instr. 2d Penal Law § 35.15 (2) Thus, mistakes or errors of judgment while doing police work must not be so unreasonable as to be considered negligent or careless.¹⁸ The U.S. Supreme Court has recognized that, "Because many situations which confront officers in the course of executing their duties are more or less ambiguous, room

¹⁸ Within the disciplinary context, the degree of carelessness warranting sanction must be more than *de minimis*. *See* *Disciplinary Case No. 2012-7616* (March 28, 2017), citing *Ryan v. N.Y.S. Liquor Auth.*, 273 A.D. 576, 581 (3d Dept. 1948); *Disciplinary Case No. 2015-13936* (Sept. 13, 2016), citing *McGinley v. Town of Greenburgh*, 48 N.Y.2d 949 (1979)

must be allowed for some mistakes on their part. *But the mistakes must be those of reasonable men, acting on facts leading sensibly to their conclusions of probability.*" *Brinegar v. U.S.*, 338 U.S. 160, 176 (1949) [*emphasis added*]¹⁹

As discussed in detail above, Respondent raised the defense that the shooting of § 87(2)(b) was justified because he believed P.O. Barrett had fallen under the vehicle and that he was in imminent danger of being "crushed" if the vehicle moved. The record, however, disproved that this was an objectively reasonable belief at the moment Respondent discharged his firearm. Instead, Respondent made an uninformed decision and reacted with maximum force to what amounted to an assumed danger.

At trial, Respondent testified about this critical moment as follows: "I see the door hit Barrett and he goes flying out of my sight out of my view. I couldn't see him. And I feared the worst. I thought he was under the car. . . ," and that "any movement was going to crush Barrett" (Tr. 231-32) Inasmuch as Respondent was lying across the front seat of the vehicle at that time, it is likely that P.O. Barrett could have been out of his line of sight, even if temporarily. No doubt, this gave Respondent reason to be generally apprehensive about P.O. Barret's safety. However, P.O. Barrett falling under the vehicle was only one of many possible outcomes. For deadly force to be justified under the Penal Law, it is critical that officers act upon more than a mere possibility, particularly when there is no visual confirmation of the imagined danger. Conjecture or speculation of imminent deadly harm falls far short of what the law requires to justify an officer taking a life.

¹⁹ Although the *Brinegar* case involved a warrantless search, the tribunal found the "reasonableness test" articulated by the United States Supreme Court to be instructive in setting forth a standard for determining the reasonableness of an officer's actions.

That P.O. Barrett stumbled, but did not fall, by itself, is insufficient to disprove the justification defense. However, as noted above in *Brinegar*, 338 U.S. at 176, mistakes made by a sergeant in the course of executing his duties “must be those of reasonable men, acting on facts leading sensibly to their conclusions of probability.” In short, a reasonable belief should be founded on more than fear, conjecture or assumptions.

Respondent’s decision to shoot directly into the left side of the subject’s chest, at point blank range, required more than P.O. Barrett stumbling out of Respondent’s line of sight when the vehicle jumped into reverse. To be clear, this record revealed no additional indicators that the lethal threat he feared was imminent. Instead, what Respondent articulated was a mere possibility, or an unfounded assumption, as the rationale for firing a fatal shot directly into the subject’s chest. For example, not only did Respondent not see P.O. Barrett fall under the vehicle, the record is devoid of any evidence that there was some sound suggesting that P.O. Barrett was in that position. Moreover, there was no evidence that either police officer screamed in distress or yelled out a warning concerning that danger. A scream, a specific noise indicating impact, or a bump when the vehicle stopped, would have elevated the risk level and provided some reasonable indication that the feared threat was immediate and unavoidable. At trial, however, Respondent articulated none of these, nor any similar factors, as part of his risk assessment. In sum, there were no objective indicators supporting Respondent’s purported belief that P.O. Barrett was in immediate mortal danger.

This tribunal acknowledges that this was a quickly evolving and tumultuous car stop involving a subject who was resisting and struggling for control of the vehicle. However, even within this context, a reasonable sergeant confronting similar circumstances would have taken some steps to confirm the actual position of his officers before firing a fatal shot. Here,

Respondent took no steps to verify his unfounded assumption that P.O. Barrett was in imminent danger of being crushed under the vehicle before resorting to deadly force at point blank range. It is especially disturbing that, even though the vehicle was in park at the time, Respondent did not even call out to his officers to determine their positions or ascertain whether they were in imminent danger. According to Respondent, "I'm not going to yell and scream -- and wait for a response when I need to move and act quickly." (Tr. 282-83) Respondent's flippant and dismissive demeanor at trial trivialized the need for a founded risk assessment and buttressed the conclusion that his actions were not those of a reasonable sergeant.

Moreover, Respondent did not even assert during his direct testimony that he attempted to look up to determine the actual position of his two officers prior to firing the fatal shot, even though the vehicle gearshift was in park. Instead, he claimed that, "As soon as I -- I fired the shot, Detective Barrett reappears in my line of sight. He opens the door." (Tr. 232) Respondent's testimony that P.O. Barrett "reappears" only after he shoots, leads this tribunal to infer that, at best, he assessed the risks without making any reasonable efforts to confirm his alleged fears.

The questionable nature of Respondent's answers on cross-examination served to further undermine the reliability of his defense that he acted reasonably. The following exchanges are telling:

Q.o When the car jerks back, you don't think to look up and see where your fellow officers are?o

A.o I -- Barrett was on my left -- on the -- driver's side door and the doors closed and he's not by the window or nothing like that.o

Q.o So prior to you discharging your firearm, you did not look, correct?o

A.o I did look. I did not see them.o

At this point, Respondent views footage which shows P.O. Barrett at the driver side window as the shot was fired. (CCRB Ex. 4)

Q.o [Now] when you heard the shot, Barrett is standing in the window; isn't that right?

A. No. He's by the pillar.

Q. You would agree Barrett is not a small gentleman, correct?

A. Correct.

Q. Now, how is it that you can look up but still not see him at the time?

A. Didn't see him at the time. (Tr. 285-86)

This tribunal is highly skeptical of Respondent's claim that he did not see P.O. Barrett because he was behind the pillar separating the front and rear doors of the vehicle. To be clear, missing P.O. Barrett's reappearance unto itself is not sufficient to disprove that he acted reasonably. What is troubling here is the attempt to convince this tribunal that P.O. Barrett was not at the window and was completely hidden from view. In this tribunal's estimation, the pillar separating the vehicle doors is approximately six to seven inches wide. While it may be accurate to state that part of P.O. Barrett's right shoulder was obscured behind the pillar, he was not crouched behind it, his body was not bladed, and his face, and the entire left side of his torso, were in front of the open driver side window. Respondent's insistence that P.O. Barrett was entirely concealed "by the [door] pillar" lacked the ring of truth and seemed designed to insulate him from any criticism that he acted unreasonably by not looking sooner. In short, against the weight of the evidence, Respondent contrived an after the fact story that he did look, but P.O. Barrett was not visible.

It is also concerning that, at trial, P.O. Barrett reinforced Respondent's misleading statement by also testifying that he was not visible at the window when Respondent shot § 87(2) but at the vehicle's door pillar. Below is the relevant exchange which took place at his FID interview and which was read into the trial record:

Q. Okay. So then you repositioned yourself to get a good vantage point of the discharge?

A.s The door opens, the door is closed, it goes -- the car goes forward again to almosts where it was. I go to the car, I open the door. And at that point, I see Sergeants Rivera. That's when he had the gun to his chest and he pulled the trigger and hes shot him.²⁰ (Tr. 210)s

At trial, P.O. Barrett walked back this statement and claimed that he "didn't go far enough where I could actually see" Respondent and that he could only observe the firearm before the shot. (Tr. 208-09) After being asked to watch BWC footage to confirm his position at that criticals moment, he is asked:

Q.s Does that refresh your recollection as to where you were when the shot went off?s

A.s Yes.s

Q.s And where were you?s

A.s I was at the pillar, when you open the door. I'm not exactly sure what pillar that is.s But I'm not completely in front of the driver. I was right at that pillar. (Tr. 216)s

P.O. Barrett's contradictory statements support this tribunal's finding that both witnesses obfuscated the truth in an attempt to mislead the finder of fact by representing that P.O. Barrett could not be seen by Respondent, even if he had tried to look for him. In sum, they unsuccessfully attempted to cast Respondent's actions in a more favorable light and establish that Respondent acted reasonably under these particular circumstances.

It is also important to underscore that a reasonable sergeant's risk assessment would have also been informed by his training. While this is not a case where the findings turn on tactical or Patrol Guide violations, training cannot be ignored as a basis for assessing reasonable police conduct. Although this is not the scenario that first comes to mind when reading the Department's prohibition against discharging firearms at or from a moving vehicle,²¹ the message is clear: officers are trained to think differently about risks posed by subjects seeking to

²⁰ Though the full transcript is not in evidence, Respondent's counsel stipulated that this was P.O. Barrett's transcribed response to FID. (Tr. 210-11)

²¹ P.G. 221-01, Page 3, Prohibition (f) (CCRB Ex. 13)

flee in a vehicle in close proximity to them. In contrast to other threats which expressly justify the use of deadly physical force, Department protocols explicitly forbid firing on operators who present with this danger. Department directives on this point state the expectations: officers are instructed to jump out of the path of the vehicle.²² Respondent disregarded these directives in his threat assessment of § 87(2)(b) actions and the appropriate response to it.

This tribunal also notes that Respondent bears some responsibility for placing himself in a position where he forfeited his command and control of the scene and his ability to watch over the officers he was supervising. Specifically, Respondent could have easily ascertained that P.O. Barrett was not underneath the vehicle if he had not entered it himself, thereby compromising his visual of the overall scene. That decision was not objectively reasonable for an experienced sergeant.

In sum, the evidence disproved that, at the moment of the shooting, Respondent had an objectively reasonable ground to believe that it was necessary to use deadly force against § 87(2)(b)

On the contrary, the record established that Respondent's threat assessment was speculative and uncorroborated and should not have been met with the highest level of force; in essence the firing of a "kill shot." Reasonable sergeants of his experience do not shoot at point blank range into a subject's chest based on what amounts to conjecture or speculative fear. To be objectively reasonable under these particular circumstances requires at least some verification that the use of deadly physical force is imminent.

Accordingly, this tribunal finds that the preponderance of the credible evidence disproved that Respondent was justified in intentionally shooting § 87(2)(b). As such, he is found Guilty of the misconduct set forth in Specification 1.

²² CCRB Ex. 10 at 22-23

3. Specification 2: Menacing in the Second Degree

As noted above, because Respondent was not served within the extended statute of limitations period, CCRB has the burden of proving, by a preponderance of the evidence, all elements of Penal Law §120.14 (1), Menacing in the Second Degree. In short, the record must establish that Respondent intentionally placed, or attempted to place, § 87(2)(b) in reasonable fear of serious physical injury or death by pointing his firearm directly at him.

It is uncontested that during the struggle, Respondent opened the front passenger door and climbed onto the passenger in the front seat. He then transitioned the Taser to his left hand, drew his service weapon with his right hand, pointed it directly at § 87(2)(b) and shouted, "Yo, if I have to end up fucking shooting you, bro . . . Yo boss, I'm going to fucking shoot you."

Questions of whether Respondent's actions conformed solely with Patrol Guide force directives are not at issue here. Instead, the analysis must focus on whether Respondent's conduct satisfies the Penal Law definition of menacing. § 87(2)(b) was simultaneously engaged in a physical struggle with P.O. Barrett and Respondent while trying to drive away and avoid arrest. In addition, § 87(2)(b) did not comply with repeated orders from the officers to get out of the vehicle and less lethal force, including Taser discharges, were ineffective. Although this threat of force may have violated certain standards set forth in the Patrol Guide, it did not rise to the level of criminality. To hold otherwise would ignore the law enforcement context of these actions. As such, this Penal Law section does not logically apply to this set of circumstances. Accordingly, Specification 2 is dismissed as untimely.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

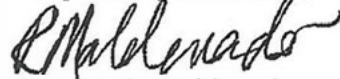
Respondent, who was appointed to the Department on July 6, 2010, has one prior adjudication from 2013 where he pled guilty to repeatedly contacting a female via telephone and text messages, using profanity and derogatory language. As part of a negotiated settlement, Respondent forfeited 30 suspension days without pay and cooperated with Department counseling. Respondent also has one prior firearm discharge, from December 2013, which FID classified as "Adversarial Within Guidelines." (CCRB Ex. 7 at 5)

CCRB seeks Respondent's termination for the fatal shooting of [REDACTED] § 87(2)(b). This tribunal agrees with that recommendation. The Department's Disciplinary Guidelines are painstakingly clear that there is only one appropriate penalty for misconduct of this nature. The presumptive penalty for deadly physical force resulting in serious physical injury or death is termination; the Guidelines do not allow for a mitigated penalty in these matters.

Termination is also consistent with the penalty in prior cases where an officer's misconduct resulted in civilian loss of life. Members of service, particularly supervisors like Respondent, are entrusted with significant power and authority. At the same time, it is expected that they will exercise reasonable, prudent judgment even when confronted with extraordinarily stressful, sometimes frightening, situations. Here, Respondent's actions fell far short of what the

Department expects from its members, and tragically, § 87(2)(b) lost his life. As this tribunal has previously stated, “there is only one appropriate penalty for the grave misconduct that yielded an equally grave result,” Respondent can no longer serve as a member of the NYPD. *See Disciplinary Case No. 2018-19274* (Aug. 19, 2019); *see also Disciplinary Case No. 2017-17490* (Sept. 20, 2023); *Disciplinary Case No. 2012-7616* (March 28, 2017) Accordingly, I recommend that Respondent be dismissed from the New York City Police Department.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

DISAPPROVED

AUG 15 2025

**JESSICA S. TISCH
POLICE COMMISSIONER**



ERIC L. ADAMS
MAYOR

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MOHAMMAD KHALID
INTERIM CHAIR

March 4, 2025

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Lieutenant Jonathan Rivera
Disciplinary Case No. 2023-28440

Commissioner Tisch:

The above-referenced case was tried on July 29, 2024, by Administrative Prosecutors Deanna Everett-Johnson and Amanda Rodriguez for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Deputy Commissioner of Trials ("DCT"), Rosemarie Maldonado, dated February 7, 2025. We respectfully submit the following comments regarding the draft decision pursuant to Fogel v. Board of Education, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Lieutenant Jonathan Rivera, was charged with the following:

1. Lieutenant Jonathan Rivera, on or about October 17, 2019, at approximately 1453, while assigned to 052 PCT and on duty, in the vicinity of Bainbridge Avenue and East 211th Street, Bronx County, used force without police necessity in that, with the intent to cause serious physical injury, he intentionally fired a shot from his firearm at § 87(2)(b) causing serious physical injury.

PG 221-01 FORCE GUIDELINES; PG 221-02 USE OF FORCE
NEW YORK PENAL LAW § 120.10(1) ASSAULT IN THE FIRST DEGREE

2. Lieutenant Jonathan Rivera, on or about October 17, 2019, at approximately 1453, while assigned to 052 PCT and on duty, in the vicinity of Bainbridge Avenue and East 211th Street, Bronx County, abused his authority as a member of the New York City Police Department, in that he intentionally placed or attempted to place § 87(2)(b) in reasonable fear of serious physical injury or death by pointing his firearm at § 87(2)(b) and threatening to shoot § 87(2)(b) without police necessity.

PG 203-10, PAGE 1, PARA 5 PUBLIC CONTACT- PROHIBITED CONDUCT (*now encompassed by AG 304-06-page 1 para 1 prohibited conduct*)
NEW YORK PENAL LAW § 120.14(1) MENACING IN THE SECOND DEGREE

The Court found the Respondent guilty on Specification One (1) and not guilty on Specification Two (2). As a result, the Court recommended that the Respondent be terminated. CCRB agrees with the Court's finding of guilt on Specification One (1). CCRB respectfully disagree with the Court's finding of not guilty with respect to Specification Two. We respectfully request that you reject the findings and recommendations of Deputy Commissioner Rosemarie Maldonado as to Specification Two (2). We request instead that you find the Respondent Guilty on Specifications One (1) and Two (2) and impose Termination.

STATEMENTS OF FACTS

On October 17, 2019, at approximately 2:49pm, Detective Edward Barrett (Police Officer Barrett at the time of the incident), Detective Michelle Almanzar (Police Officer Almanzar at the time of the incident), and Lieutenant Jonathan Rivera (Sergeant Rivera at the time of the incident) were on patrol in the confines of the 52nd precinct. While on patrol and in the vicinity of 211th Street and Bainbridge Avenue, Bronx County, Detective Barrett (hereinafter, "DT") observed a motorist, later identified as § 87(2)(b) operating an SUV without a seatbelt (Tr 173 lines 11-12). DT Barrett informed Detective Almanzar (hereinafter, "DT") and LT Rivera he was going to conduct a vehicle stop and asked § 87(2)(b) to pull the car over.

At approximately 2:50pm, DT Barrett approached § 87(2)(b) on the driver's side and asked for license and registration; DT Almanzar was next to DT Barrett on the driver's side and LT Rivera approached on the passenger side (CCRB Ex. 2 at 00:34). DT Barrett informed § 87(2)(b) he was stopping him because it looked like he was not wearing a seatbelt and § 87(2)(b) showed DT Barrett that he was wearing a seatbelt and stated in sum and substance that he and the passenger, § 87(2)(b) were just talking about seatbelts (CCRB Ex. 2 at 00:53-00:57). § 87(2)(b) complied with the request for documentation and provided an ID and rental agreement.

DT Barrett then stated in sum and substance that perhaps it was "the black on black", but he did not observe § 87(2)(b) wearing a seatbelt; DT Barrett then instructed § 87(2)(b) to roll down all the windows and § 87(2)(b) complied (CCRB Ex. 2 at 00:58-1:13). It is undisputed that § 87(2)(b) provided his brother's, § 87(2)(b) Ohio license and § 87(2)(b) confirmed the name and date of birth on the identification. DT Barrett utilized his department phone to input the information and results showed that § 87(2)(b) had multiple open warrants (Tr. 175 lines 8-12). The warrants were for minor violations including disorderly conduct, spitting and littering (CCRB Ex. 6 P 4 ¶4).

DT Barrett then informed the respondent that § 87(2)(b) “popped”, and he was “just going to talk to him” (CCRB Ex. 2 at 2:16).

DT Barrett then asked § 87(2)(b) to put the car in park, step out of the vehicle and stand near the rear of the vehicle (Tr 193 lines 22-25). The passenger was not asked to step out of the vehicle and remained inside of the vehicle. § 87(2)(b) initially complied with the request and stepped out of the vehicle. After a few seconds § 87(2)(b) re-entered the vehicle and attempted to put the car in drive (CCRB Ex. 1 at 2:35-2:40). Respondent immediately pulled out his taser and deployed it through the window, over the passenger, striking § 87(2)(b) (CCRB Ex.1 at 2:42 and CCRB Ex. 1E). § 87(2)(b) was momentarily affected and then attempted to take the prongs off while stating “quitamelo” (CCRB Ex. 2 at 2:55).

Respondent then opened the passenger door, unholstered his firearm, and with his taser in one hand and his firearm in the other hand (CCRB Ex. 1H), threatened § 87(2)(b) twice by stating, “If I have to fucking end up shooting you bro” (CCRB Ex. 2 at 3:02) and “Yo, bro, I’m going to fucking shoot you” (CCRB Ex. 2 at 3:08). During this time DT Barrett attempted to extract § 87(2)(b) out of the driver’s side of the vehicle by grabbing his head and chest and § 87(2)(b) can be heard stating “en la boca no” (CCRB Ex. 2 at 3:04). It should be noted that no MOS on scene attempted to use a baton to gain compliance (Tr. 197 lines 18-20).

Respondent then climbed over the passenger and into the vehicle with a taser in his left hand and the firearm in his right hand (CCRB Ex. 2C). Once Respondent was inside the vehicle, a struggle between § 87(2)(b) DT Barrett and Respondent ensued. DT Barrett and DT Almanzar repeatedly told Respondent to put the car in park (CCRB Ex 3 at 3:12-3:18). DT Barrett and Respondent attempt to extract § 87(2)(b) for approximately one minute (CCRB Ex. 3 at 3:04-4:06) while DT Almanzar requested backup (CCRB Ex.3 at 3:21). DT Barrett was in between the door and § 87(2)(b) attempted to extract him from the vehicle while Respondent was striking § 87(2)(b) with his fists and taser. It is undisputed that during the struggle the vehicle reversed a few feet (CCRB Ex. 3 at 4:08-4:11). When the vehicle reversed, DT Barrett stumbled back a couple feet but did not fall (Tr. 207 lines 18-25 – 208 lines 1-4). DT Barrett made it back to the door in approximately three seconds (Tr. 208 lines 7-13; CCRB Ex 3 at 4:11). DT Almanzar also stepped back up to the vehicle and testified that the vehicle was at a full stop (Tr. 165 lines 12-14). DT Almanzar also testified that she observed the Respondent’s gun and observed him reaching over the passenger and point the gun at § 87(2)(b) chest (Tr. 165 lines 15-20).

Although DT Barrett testified that he did observe the firearm but not LT Rivera (Tr. 209 lines 3-12), Counsel stipulated on the record that DT Barrett previously testified on October 17, 2019, to FID that “The door opens, the door is closed, it goes-- the car goes forward again to almost where it was. I go to the car; I open the door. And at that point, I see Sergeant Rivera. That's when he had the gun to his chest and he pulled the trigger and he shot him” when asked if he repositioned himself to get a good vantage point of the discharge (Tr. 210 lines 13-23; Stipulation Tr. 211 lines 2-4). DT Barrett quickly returned to the stopped vehicle (CCRB Ex 3 at 4:11) and the fatal shot can be heard one second later at 4:12 and DT Barrett is captured at the driver’s side door (CCRB Ex 3A). Respondent testified that the vehicle was in park when he discharged his firearm (Tr. 288 lines 18-23). § 87(2)(b) sustained a gunshot wound to the chest and was subsequently removed from the vehicle and transported to the hospital where he was pronounced deceased. DT Barrett and DT Almanzar were both transported to § 87(2)(b) hospital where they were treated for tinnitus and released.

RESPONDENT RIVERA IS GUILTY OF THE USE OF DEADLY FORCE

AGAINST § 87(2)(b)

Lieutenant (hereinafter “LT”) Rivera was found guilty of the use of deadly force without police necessity. CCRB agrees with this finding and the Court’s conclusion that “the evidence disproved that, at the moment of the shooting, Respondent had an objectively reasonable ground to believe that it was necessary to use deadly force against § 87(2)(b) (Decision at 28). It is undisputed, based on the evidence and testimony presented at the trial, that LT Rivera pointed his gun at the complainant and shot him at *point blank range* in the chest. However, Respondent claimed, as a defense, that he was legally justified in doing so and that he shot § 87(2)(b) because he reasonably feared for the immediate safety of PO Barrett. When assessing the legality of Respondent’s defense, DCT Maldonado noted that there is a two-part analysis, which includes whether Respondent actually believed that § 87(2)(b) was using or about to use deadly force against PO Barrett and that Respondent’s own use of deadly physical force was necessary to defend PO Barrett from imminent harm. (Decision at 15).

The evidence at trial established that Respondent claimed that he and the other members of service were attempting to effectuate an arrest for § 87(2)(b) who had an outstanding warrant. The evidence also established that § 87(2)(b) had not committed a felony, and § 87(2)(b) did not possess

a deadly weapon. There was no evidence that even remotely suggested that the § 87(2)(b) was using “imminent deadly physical force.” § 87(2)(b) as noted by Respondent’s memo book and testimony, was “attempting to flee” or “get away.” (CCRB Ex. 14 & Tr. 282, line 7-9). Moreover, Respondent’s belief that he needed to employ deadly force was not reasonable. The Respondent provided many self-serving statements to justify his acts. He claimed that he had to use deadly force to “stop § 87(2)(b) from doing the drive shift” (Tr. 287, line 18). However, the Respondent also admitted that his conclusion was an assumption, without any specific factors, including not being able to speak to whether there was impact with the vehicle. (Tr. 283, line 4-7, 286-87, lines 25-10).

Other courts have held that police officers cannot avail themselves of the justification defense in situations where their claim for the need to use deadly physical force has been deemed to be objectively unreasonable. See, *Cowan v. Breen*, 352 F.3d 756 (2d Cir. 2003). There were no factors from which Respondent Rivera could have reasonably feared that he or any of his partners either had been or were about to be struck with the vehicle. § 87(2)(b) was not fleeing from committing a violent crime. § 87(2)(b) did not have a weapon. § 87(2)(b) did not threaten the officers. § 87(2)(b) did not pose an immediate threat to the officers or others. Respondent’s own testimony concedes that there were no factors present that supported the belief, objective or subjective, that DT Barrett was injured. Respondent admitted that he “assumed and perceived” them to be hurt (Tr. 284 lines 12-13). An assumption of possible injury is not the standard. As *Cowan* held, an officer must have probable cause to believe that the suspect poses a significant threat of death or serious physical injury to themselves or other officers, and in this case, the record is void of any probable cause.

DCT Maldonado concluded that critical portions of Respondent’s account were self-serving statements fabricated to minimize his culpability and thus undermined his credibility of his stated subjective belief that it was immediately necessary to discharge his firearm to protect PO Barrett. (Decision at 22). Therefore, the objective, credible evidence entered at trial by the CCRB disproved Respondent’s justification defense.

RESPONDENT RIVERA IS GUILTY OF MENACING IN THE SECOND DEGREE

While DCT Maldonado agreed that the Respondent used deadly force against § 87(2)(b) unnecessarily, DCT Maldonado disagreed that Respondent's acts of drawing his service weapon, pointing it at § 87(2)(b) and threatening to shoot him, twice, rose to the level of criminality necessary to find him guilty of menacing in the second degree. (Decision at 30). An individual commits Menacing in the Second Degree under Penal Law §120.14(1) when he or she intentionally places or attempts to place another person in reasonable fear of physical injury, serious physical injury or death by displaying a deadly weapon, dangerous instrument, or what appears to be a firearm.

The facts here are unequivocal. Respondent threatened to shoot § 87(2)(b) twice (CCRB Ex. 2 at 3:02 and at 3:08). Respondent also admitted during trial that he had his gun in hand and threatened to shoot § 87(2)(b) "way before" the car shifted at a high velocity, and he lost sight of Detective Barrett. (Tr. 275-76, line 16-11). Nothing that occurred during this interaction would have justified Respondent shooting § 87(2)(b). As noted above, Respondent's stated justification for subsequently shooting § 87(2)(b) – his fear that Detective Barrett had been hit by the vehicle and was lying on the ground – had not occurred at the point when he drew his firearm and threatened to shoot § 87(2)(b). There is no interpretation of the facts that would have justified shooting of § 87(2)(b) and therefore Respondent was unjustified in threatening to do so. Hence,, CCRB submits that Respondent is guilty of intentionally placing or attempting to place § 87(2)(b) in reasonable fear of serious physical injury or death by pointing his firearm at § 87(2)(b) and threatening to shoot § 87(2)(b) without police necessity.

CONCLUSION

The Court found Respondent Rivera Guilty of Specification One (1). CCRB respectfully requests that you accept DCT Maldonado's findings on this specification. However, CCRB respectfully submits that the Court erred in finding the Respondent not guilty of Specification Two (2). As such, CCRB requests the findings in the proposed draft decision with regard to Specification Two be rejected and that Respondent be found guilty on both charges and that a penalty of termination for Specification One (1) and for Specification Two (2) and apply the aggravated penalty of twenty days given the resulting death of § 87(2)(b)

Respectfully submitted,

Deanna Everett-Johnson

Deanna Everett-Johnson
Prosecutor, Administrative Prosecution Unit



Amanda Rodriguez, Esq.
Prosecutor, Administrative Prosecution Unit

Cc: James Moschella, Esq.
Phillip Karasyk, Esq.



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

August 15, 2025

Memorandum for: Deputy Commissioner, Trials

Re: **Lieutenant Jonathan Rivera**
Tax Registry No. 949550
Bronx Auto Larceny Unit
Disciplinary Case No. 2023-28440

The above-named member of the service appeared before Deputy Commissioner of Trials Rosemarie Maldonado on November 12, 2024, and November 13, 2024, and was charged with the following:

DISCIPLINARY CASE NO. 2023-28440

1. Lieutenant Jonathan Rivera, on or about October 17, 2019, at approximately 1453 hours, while assigned to 052 PCT and on duty, in the vicinity of Bainbridge Avenue and East 211th Street, Bronx County, used force without police necessity in that, with the intent to cause serious physical injury, he intentionally fired a shot from his firearm at § 87(2)(b) causing serious physical injury.

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

New York Penal Law § 120.10 (1)

**ASSAULT IN THE FIRST
DEGREE**

2. Lieutenant Jonathan Rivera, on or about October 17, 2019, at approximately 1453 hours, while assigned to 052 PCT and on duty, in the vicinity of Bainbridge Avenue and East 211th Street, Bronx County, abused his authority as a member of the New York City Police Department, in that he intentionally placed or attempted to place § 87(2)(b) in reasonable fear of serious physical injury or death by pointing his firearm at § 87(2)(b) and threatening to shoot § 87(2)(b) without police necessity.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by A.G. 304-06,
Page 1, Paragraph 1)

**PUBLIC CONTACT -
PROHIBITED CONDUCT**

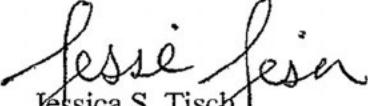
New York Penal Law § 120.14 (1)

**MENACING IN THE SECOND
DEGREE**

In a Memorandum dated March 5, 2025, Deputy Commissioner Maldonado found Lieutenant Jonathan Rivera Guilty of Specification No. 1 and dismissed Specification No. 2 as untimely, in Disciplinary Case No. 2023-28440 / CCRB Case No. 202007674. Having reviewed and considered the entire record in this matter, I find Lieutenant Rivera Not Guilty of Specification No. 1 and Not Guilty of Specification No. 2.

Please see the attached decision.

It is therefore directed that Lieutenant Rivera be found Not Guilty of Specification No. 1 and Not Guilty of Specification No. 2, in Disciplinary Case No. 2023-28440.


Jessica S. Tisch
Police Commissioner

-----X
In the Matter of the Disciplinary Proceedings

-against-

Lieutenant Jonathan Rivera

Tax Registry No. 949550
Bronx Auto Larceny Unit
-----X

Case No. 2023-28440

Decision of the Police Commissioner

August 15, 2025

I. Introduction

On October 17, 2019, Lieutenant Jonathan Rivera, Respondent in this disciplinary matter, shot and killed § 87(2)(b) during a car stop. The death of § 87(2)(b) was a tragedy, and I extend my deepest condolences to § 87(2)(b) family and friends for their loss. As Police Commissioner, I am responsible for making the final disciplinary determination in this matter. The dispositive legal question before me is whether the shooting was justified because Respondent reasonably believed that his use of deadly force against § 87(2)(b) was necessary to prevent the imminent use of deadly physical force against another person.

The Office of New York State Attorney General Letitia James conducted an exhaustive review of this incident and declined to prosecute Respondent. A prosecutor's office must prove its case beyond a reasonable doubt, a far higher standard than the preponderance of the evidence standard in a Department disciplinary proceeding. But the Attorney General did not rest her decision to decline prosecution on the high burden of proof in a criminal case. She went much further, explaining that in her view the evidence "strongly suggests" that Respondent's decision to shoot § 87(2)(b) was justified under New York law. (CCRB Ex. 6, New York State Office of the Attorney General, Report on the Investigation into The Death of § 87(2)(b) ("AG Report") at 9). The Attorney General concluded that "[t]here is no obvious reason to doubt" that Respondent discharged his firearm because he believed that doing so was necessary to save the life of his fellow officer and that "the totality of the evidence strongly suggests that [Respondent's] belief was reasonable." (AG Report at 9).

By contrast, the CCRB substantiated charges against Respondent in the instant matter and he proceeded to trial before the Department's Deputy Commissioner of Trials. As a matter of state law, because the CCRB did not preserve the statute of limitations against Respondent he cannot be subject to discipline for a violation of Department rules. Rather, he can only be disciplined for conduct that would have constituted a crime under New York law. Following trial, the Deputy Commissioner—applying the very same New York law as the Attorney General—found that the shooting was not justified. (Opinion of the Deputy Commissioner of Trials, Disciplinary Case No. 2023-28440 (March 5, 2025) ("DCT Op.")).

I thus have before me diametrically opposing views of Respondent's conduct as measured against New York criminal law. For the reasons set forth below, I agree with the Attorney General's analysis and find that Respondent's shooting of § 87(2)(b) was justified.

II. Factual Background

A detailed description of the facts in this matter may be found both in the Opinion of the Deputy Commissioner of Trials and the Report of the New York State Office of the Attorney General. I offer a condensed description of the facts as relevant to the analysis that follows.

On the afternoon of October 17, 2019, § 87(2)(b) was driving a car on 211th Street in the Bronx, with another individual in the front passenger seat. Police Officer Edward Barrett, Police Officer Michelle Almanzar, and Respondent were all in uniform in a marked patrol car and conducted a traffic stop of § 87(2)(b) vehicle after Officer Barrett observed that § 87(2)(b) was not wearing a seatbelt. All three officers activated their body-worn cameras. Officer Barrett and Officer Almanzar approached the front driver side of the car, while Respondent went to the front passenger door. The officers engaged in respectful conversation with § 87(2)(b) and the passenger. (DCT Op. at 7-8; Tr. 75). Unbeknownst to the officers, § 87(2)(b) was on federal supervised release and was in possession of cocaine and methamphetamine. (Respondent Ex. R; CCRB Ex. 7 at 17-18). § 87(2)(b) identified himself as his brother, § 87(2)(b) and gave the officers a driver's license that in fact belonged to his brother. The officers ran the name on the driver's license and discovered that § 87(2)(b) had multiple open warrants. The officers, believing that § 87(2)(b) was § 87(2)(b) had probable cause to arrest § 87(2)(b) on those warrants. (DCT Op. at 5-8).

At the instruction of the officers, § 87(2)(b) was standing outside the car. But when it became clear that the officers were going to pat him down, § 87(2)(b) quickly stepped back into the driver's seat and began to pull the door closed. § 87(2)(b) grabbed the steering wheel and reached for the gearshift in an effort to put the car into drive and escape. (Tr. 158-159; 176-177). Officer Barrett, standing between § 87(2)(b) and the open driver-side door, grabbed § 87(2)(b) and tried to pull him out of the vehicle, as Officer Almanzar yelled, "What are you doing?" and "Put it in park, put it in park, put it in park." (DCT Op. at 8; CCRB Ex. 3 at 2:46-2:49). Meanwhile, Respondent discharged his Taser at § 87(2)(b) from the open passenger-side window, yelling to Officer Barrett and Officer Almanzar, "Pull him out. Pull him out." (DCT Op. at 9). While the Taser prongs struck § 87(2)(b) they failed to incapacitate him, and § 87(2)(b) grabbed the steering wheel with his left hand and the gearshift with his right hand. Officer Barrett repeatedly yelled at § 87(2)(b) to get out of the car, as he punched and grappled with § 87(2)(b) and unsuccessfully tried to pull § 87(2)(b) who weighed approximately 240 pounds, from the vehicle. (DCT Op. at 9). At the same time, Respondent entered the passenger side of the vehicle and climbed onto the passenger. Respondent drew his firearm and pointed it at § 87(2)(b) yelling, "Yo, if I have to fucking end up shooting you, bro . . . Yo, boss, I'm going to fucking shoot you." (CCRB Ex. 1 at 2:58-3:05). § 87(2)(b) undeterred, continued trying to put the car into drive. Respondent put his

firearm back in his holster. Climbing fully across the passenger, Respondent repeatedly hit § 87(2)(b) and tried to push him out of the car. He also used his Taser to strike § 87(2)(b) (DCT Op. at 9-10).

Throughout this struggle, which lasted for approximately 90 seconds, Respondent and § 87(2)(b) were fighting for control of the gearshift, with § 87(2)(b) trying to put the car into drive and Respondent trying to keep the gearshift in park. Officer Barrett was standing between the open driver-side door and the car, grappling with § 87(2)(b). Officer Almanzar was yelling at § 87(2)(b) to get out of the car and calling to Respondent to get the gearshift in park. (DCT Op. at 9-10; AG Report at 5; CCRB Ex. 3 at 3:30-3:50; Tr. 230-231).

Suddenly, the car surged forward several feet, as Officer Barrett continued struggling with § 87(2)(b). Then the car abruptly accelerated backward several feet. Officer Almanzar cried out “Oh my god” as Officer Barrett was pushed by the driver-side door to the rear of the car. (CCRB Ex. 3 at 4:08-4:10; CCRB Ex. 4 at 00:14-00:16; Tr. 146-147, 178-180). The car suddenly stopped, and the driver-side door slammed shut. At that moment, Respondent took out his firearm and shot § 87(2)(b) once in the chest. Officer Barrett rushed back to the driver-side window as the gunshot went off. (DCT Op. at 10-11; AG Report at 6; CCRB Ex. 3 at 4:10-4:12; CCRB Ex. 4 at 00:17-00:21). The officers removed § 87(2)(b) from the car. Respondent immediately called for an ambulance and began performing CPR. Members of EMS arrived on the scene and transported § 87(2)(b) to § 87(2)(b) Hospital. He was pronounced dead shortly thereafter. (DCT Op. at 10-11).

Respondent has stated on multiple occasions that, after the car lurched backward and the door slammed shut, he could no longer see Officer Barrett. Given where Officer Barrett had been standing a moment earlier, Respondent believed that Officer Barrett had been hit by the driver-side door and had fallen to the ground, beneath the wheels of the car. Respondent believed that any further movement of the vehicle would have resulted in Officer Barrett being crushed under the car. Respondent has explained that he shot § 87(2)(b) to stop the car from moving and thereby save Officer Barrett’s life. (Tr. 93-94; Tr. 231-232; AG Report at 7; CCRB Ex. 7 at 22).

III. Procedural History

The Department first released segments of body-worn-camera footage to the public on January 24, 2020. The Attorney General completed her investigation and released her report explaining her decision not to prosecute Respondent on September 20, 2020. That investigation included a review of, among other things, body-worn-camera footage from all officers involved in the incident; Department paperwork and radio communications; inspection of the car driven by § 87(2)(b); interviews of the officers involved, including Respondent; an interview of the passenger in the vehicle; and medical records and the autopsy report for § 87(2)(b) (AG Report at 1). The Department’s Force Investigation Division (“FID”) completed its report on June 11, 2021, finding that Respondent’s use of force was consistent with Department policy. (CCRB Ex. 7). That report was delivered to the Department’s Force Review Board, which convened in

July 2021 and found that the discharge was within Department use-of-force guidelines. On August 9, 2021, then-Commissioner Dermot Shea adopted the finding of the Board. (DCT Op. at 3; Respondent Ex. Q).

The statute of limitations for violations of Department policy is typically 18 months; because of the COVID pandemic the statute of limitations was extended an additional seven-and-a-half months. That extended statute of limitations expired on December 2, 2021. The Force Investigation Division provided its file to the CCRB on December 8, 2021, and the Department provided additional body-worn-camera footage to the CCRB on May 10, 2022. The CCRB Board voted to substantiate charges against Respondent on May 10, 2023, and Respondent was served with charges on June 4, 2024, over 30 months after the expiration of the already-extended statute of limitations and almost five years after § 87(2)(b) was killed. (DCT Op. at 3).

The Department is far from blameless in this regard. The Department provided the FID file to the CCRB after the statute of limitations had already run. That was wrong. A subsequent memorandum of understanding between the Department and the CCRB, executed in December 2023, provides that in FID cases the Department will provide the relevant materials to the CCRB within 90 days of the CCRB's request. The framework in that memorandum of understanding will prevent a delay of the sort that occurred here and will ensure that FID materials are provided to the CCRB in a timely manner.

That said, the CCRB could easily have brought charges against Respondent within the statute of limitations. The Attorney General's Report was released in September 2020, approximately 15 months before the statute of limitations expired. That report contained extremely detailed information about what had transpired, Respondent's account of his actions, and links to the key footage in this matter. (AG Report at 4 n.3, 6 n.12). Put simply, the main evidence relied upon by the CCRB was available to the CCRB approximately 15 months before the expiration of the statute of limitations. The CCRB could have brought charges to preserve the statute of limitations and then amended the pleadings if additional information became available. (DCT Op. at 3 n.5). The CCRB chose not to do so. And then, even after receiving the FID file, the CCRB took another 17 months to vote to substantiate charges.

Under New York State Civil Service Law § 75, once the statute of limitations had expired Respondent could only face discipline for conduct that would otherwise constitute a crime—what is known as the “criminal exception” to the statute of limitations in disciplinary proceedings. The CCRB substantiated charges against Respondent for Assault in the First Degree, in violation of New York Penal Law § 120.10(1) (Specification 1) and Menacing in the Second Degree, in violation of Penal Law § 120.14(1) (Specification 2).

Respondent appeared for trial before the Deputy Commissioner of Trials on November 12, 2024 and November 13, 2024. The Deputy Commissioner heard testimony from several witnesses, including Respondent. The Deputy Commissioner subsequently issued a written decision finding Respondent guilty of Specification 1 and recommending that he be terminated

from the Department. The Deputy Commissioner dismissed Specification 2 because the CCRB had failed to meet its burden of proving the elements of the crime by a preponderance of the evidence.

I agree with the Deputy Commissioner that the CCRB failed to prove the menacing charge in Specification 2. Respondent is not guilty of that charge, substantially for the reasons stated in the Deputy Commissioner's opinion. (DCT Op. at 29). For the reasons discussed below, I believe that the CCRB also failed to meet its burden as to Specification 1, and therefore Respondent is not guilty of that charge as well.

IV. Discussion

The relevant New York State statutes and caselaw are cited and described in detail in the Opinion of the Deputy Commissioner of Trials and the Report of the New York State Office of the Attorney General. I rely on those authorities in my analysis here.

There is no dispute that Respondent shot and killed § 87(2)(b). The question is whether, as a matter of New York law, the shooting was justified. Under New York Penal Law § 35.30, a police officer may use deadly physical force if (1) the officer reasonably believes that a person has committed an offense; (2) the officer is attempting to arrest that person; and (3) the officer reasonably believes that the use of deadly force is necessary to defend himself or another person from what the officer reasonably believes to be the use or imminent use of deadly physical force. The burden was on the CCRB, as the prosecuting agency, to disprove the applicability of the justification defense by a preponderance of the evidence.

Respondent reasonably believed that § 87(2)(b) had multiple active warrants and was subject to arrest, and § 87(2)(b) plainly committed the offense of resisting arrest as the officers tried to take him into custody. Indeed, the CCRB's expert testified that the officers had probable cause to arrest § 87(2)(b) and that he resisted arrest (Tr. 74, 79). What is in dispute is the third prong of the test: whether Respondent reasonably believed that the use of deadly force against § 87(2)(b) was necessary to save Officer Barrett. This question has a subjective component (did Respondent have this belief) and an objective component (was this belief reasonable). Like the Attorney General and the Deputy Commissioner of Trials, I will consider each of these matters in turn.

a. Subjective Test

Respondent argues that he shot § 87(2)(b) to save Officer Barrett from the imminent danger of being crushed under the car, and the Attorney General concluded that "[t]here is no obvious reason to doubt that [Respondent] actually believed what he claimed to have believed." (AG Report at 9). I agree. Indeed, looking at the totality of what transpired during the car stop and subsequent struggle, I am convinced that Respondent shot § 87(2)(b) because he believed that doing so was necessary to save Officer Barrett's life. This is true for several reasons.

To begin, the record of what transpired demonstrates that Respondent did not want to shoot § 87(2)(b). Over the course of the fight inside the car, with the engine on, with Officer Barrett standing between the open car door and the vehicle grappling with § 87(2)(b) as § 87(2)(b) refused to yield and struggled with Respondent over the gearshift, there is no question that Officer Barrett's safety, and Respondent's safety, were at risk. The officers' repeated commands to § 87(2)(b) were to no avail. Respondent repeatedly sought to mitigate the threat without using lethal force. He deployed his Taser at § 87(2)(b) he pulled out his firearm and threatened to shoot § 87(2)(b) he hit § 87(2)(b) he used his Taser to strike § 87(2)(b). There is nothing about this sequence of events that remotely suggests that Respondent was looking to discharge his firearm.

It is particularly telling that after Respondent drew his firearm and threatened to shoot § 87(2)(b) Respondent *reholstered his firearm*. Respondent seemed determined not to shoot. Even when the car lurched forward—increasing the risk that the car would continue to accelerate and that Respondent, with his body extended into the car, would be dragged with it, putting Respondent in severe jeopardy—he still did not discharge his firearm.

After all this, Respondent only resorted to lethal force when the car lurched backward. What had changed? The answer is obvious: In that moment, Respondent believed that Officer Barrett was under the car and was going to be killed if the car moved again.

To the extent the suggestion is that Respondent was generally impatient or was otherwise quick on the draw, everything that had transpired until that point is to the contrary. And if the suggestion is that Respondent just happened to run out of patience at the exact moment when the car lurched back and Officer Barrett was knocked out of view, that is a completely implausible coincidence. Given the timeline of what transpired, by far the most plausible reason that Respondent discharged his firearm was because he believed that doing so was necessary to save Officer Barrett's life.

That is my view, consistent with the determination by the Attorney General. The Deputy Commissioner of Trials took a different view. There are several reasons why she believed that Respondent did not discharge his firearm in order to save Officer Barrett's life. I do not find those reasons compelling.

First, the Deputy Commissioner focused on Respondent's statements and conduct immediately after the shooting, and was troubled by the fact that Respondent did not inquire concerning Officer Barrett's safety. (DCT Op. at 18). But immediately after discharging his firearm, Respondent saw that Officer Barrett was safe and upright next to the car; there was no need for him to inquire. More fundamentally, in the midst of a terrifying struggle, Respondent had just shot § 87(2)(b) and together with his fellow officers was trying to perform life-saving measures. I do not think anyone can make assumptions about Respondent's state of mind in the aftermath of the shooting, let alone assumptions about what he should have said or done.

Second, as members of EMS were treating § 87(2)(b) Respondent was speaking to Officer Almanzar and said, in relevant part, that “[t]he engine was on, man. I was fighting. My hand was getting tired.” (CCRB Ex. 3 at 7:52-8:03). From this the Deputy Commissioner concludes that Respondent did not shoot § 87(2)(b) because he feared for Officer Barrett’s life, but because Respondent’s hand was “tired.” (DCT Op. at 19). I understand Respondent’s statement very differently: This was an incredibly dangerous situation, and yes, what made it so frightening was that with the engine on and Respondent fighting with § 87(2)(b) to put the car into park, Respondent’s hand was getting tired—if § 87(2)(b) successfully overpowered him for control of the gearshift, both Officer Barrett and Respondent were in grave danger. We *know* that Respondent did not use lethal force simply because his hand was getting tired; he only did so when the car lurched backward, the driver-side door pushed Officer Barrett back and he disappeared from Respondent’s view. It is only then—when the apparent risk to Officer Barrett had gone up exponentially—that Respondent used lethal force.

Third, the Deputy Commissioner was troubled by Respondent’s testimony that when he said that his hand was getting tired, he was referring to his hand being tired from administering CPR. (DCT Op. at 19-20; Tr. 304). I agree with the Deputy Commissioner that, given the context in which the statement was made, Respondent was clearly referring to his struggle in the car, not to administering CPR. But here is the problem: Respondent was testifying about statements that he made *five years earlier*. To the extent that he did not accurately remember what he meant, that is hardly shocking. And in any event, the issue is not what Respondent meant when he referred to his hand being tired. What matters is why he shot § 87(2)(b). In my view, the answer to that question is clear.

Finally, the Deputy Commissioner was concerned that, earlier in the encounter, Respondent had drawn his firearm and threatened to shoot § 87(2)(b). The Deputy Commissioner notes that “it was only when P.O. Barrett was no longer at the door assisting with the extraction, that [Respondent] followed through on his threat.” (DCT Op. at 21). That is correct, but as discussed above, this demonstrates that Respondent was not prepared to fire because he and Officer Barrett were at risk. He only fired once he believed that Officer Barrett’s life was in imminent danger.

b. Objective Test

Even if Respondent believed that lethal force was necessary to save Officer Barrett’s life, his actions are only justified if that belief was reasonable. It was. Given what had just transpired—the car lurching backward, Officer Barrett being pushed away from the vehicle, and then falling out of view—it was reasonable for Respondent to believe that Officer Barrett had been hit by the car door and had fallen under the car. And given § 87(2)(b) repeated, unyielding efforts to move the gearshift into drive despite all efforts by the officers, it was reasonable for Respondent to believe that § 87(2)(b) would continue to do so, putting Officer Barrett’s life in immediate peril. The analysis by the Attorney General is worth quoting at length:

Furthermore, the totality of the evidence strongly suggests that [Respondent's] belief was reasonable. There is, after all, little question that when § 87(2)(b) vehicle surged backwards for the last time, PO Barrett . . . did have to spin abruptly away from the vehicle to avoid being struck by the door, with the door slamming shut immediately thereafter. . . .

Because this evidence indicates that [Respondent's] line of sight would have been at least somewhat compromised by his awkward position and that his attention was necessarily focused on § 87(2)(b) it is entirely plausible that he indeed lost sight of PO Barrett altogether at the moment the vehicle surged backward. And given where PO Barrett had been standing immediately before that backwards surge, it is likewise plausible that his abrupt disappearance from [Respondent's] line of sight would have led [Respondent] to believe that PO Barrett had been struck by the door and was now on the ground beneath the vehicle's wheels. And in light of the considerable evidence that § 87(2)(b) had tried repeatedly, from the moment he had jumped back into the vehicle, to put the gearshift into drive and drive away, it would hardly have been unreasonable for [Respondent] to have concluded that, if § 87(2)(b) were not instantly prevented from moving the vehicle, the risk of imminent death or serious injury to PO Barrett was substantial.

(AG Report at 9-10).

Again, the Deputy Commissioner has a different view. She emphasizes that Respondent did not hear a bump or scream suggesting that Officer Barrett had fallen to the ground, and that Respondent did not call out or look up to try to determine where Officer Barrett was. She therefore concludes that the risk to Officer Barrett was too speculative. (DCT Op. at 23-25). But this does not account for the circumstances at hand. Respondent and § 87(2)(b) were engaged in an intense physical struggle. Respondent was not in a position to call a time-out and scour the driver side of the car to figure out where Officer Barrett was positioned. When Respondent testified that "I'm not going to yell and scream—and wait for a response when I had to move quickly and act quickly," the Deputy Commissioner took that as "flippant and dismissive." (Tr. 283-284; DCT Op. at 25). I do not view it as flippant or dismissive at all. I see that as a fair and realistic assessment of an incredibly fast-moving, dangerous situation, in which Respondent was required to make a split-second decision when he believed that his fellow officer's life was at immediate risk. Reasonableness must be assessed in context, and the context speaks to the reasonableness of Respondent's belief.

According to the Deputy Commissioner, Respondent's testimony on cross-examination regarding whether Officer Barrett was visible in the driver-side window when Respondent discharged his firearm undercuts Respondent's reasonableness. (DCT Op. at 25-26). The Deputy Commissioner understood Respondent to have suggested that as he fired and Officer Barrett reemerged at the front of the car, Respondent's view of Officer Barrett was blocked by the pillar

between the car doors. But that was not Respondent's testimony. While there was a back-and-forth on cross-examination as to whether Officer Barrett was at the pillar or at the driver-side window when the shot went off, Respondent did not testify that the pillar was somehow obstructing his view. Respondent has been consistent: Officer Barrett was by the driver-side door fighting with § 87(2)(b) in view of Respondent; when the car surged backward and the car door slammed shut, Respondent looked and saw that Officer Barrett was no longer at the driver-side window, leading Respondent to believe that Officer Barrett had been knocked under the car by the door; Respondent shot § 87(2)(b) because he believed this was necessary to save Officer Barrett; and immediately after he fired he saw Officer Barrett reappear at the driver-side door, once again in Respondent's line of sight. (Tr. 231-232). Respondent's testimony on cross-examination that after the car accelerated backwards he "did look" and was not able to see Officer Barrett "at the time" seems once again consistent with that account. (Tr. 285-286). To the extent there was confusion in the record on cross-examination because no one clarified at what precise moment Respondent looked and could not see Officer Barrett, this is no more and no less than the sometimes messiness of testimony at trial. It does not call into question the reasonableness of Respondent's actions.

The Deputy Commissioner also argues that Respondent was unreasonable because he disregarded the Patrol Guide prohibition against discharging firearms at or from a moving vehicle. (DCT Op. at 27-28). As the Deputy Commissioner acknowledges, the facts here are far from the scenario that comes to mind when considering that Department rule. More fundamentally, I do not see how the Deputy Commissioner would apply that rule in this situation. Yes, when a car is careening towards an officer, the officer is to jump out of the way rather than fire at the car. Here, Respondent believed that Officer Barrett was under the car. Jumping out of the way was not an option. And Respondent did not shoot at a moving vehicle. Respondent was in the vehicle, struggling with § 87(2)(b). The policy raised by the Deputy Commissioner has no application here. Indeed, CCRB's own expert acknowledged as much. (Tr. 124-125).

Last, the Deputy Commissioner suggests that Respondent "bears some responsibility" for placing himself inside the car, thereby obscuring his view of what was happening to the other officers. (DCT Op. at 28). I agree that Respondent put himself at a tactical disadvantage by placing his body inside the car. But that cannot preclude him from acting to save another officer's life. Put another way, it would be perverse to suggest that Respondent could not act to save Officer Barrett from § 87(2)(b) because Respondent had previously made a tactical mistake.

V. Conclusion

For the foregoing reasons, Respondent's shooting of § 87(2)(b) was justified. I make this determination having considered the entire record in this matter, giving due weight to the Deputy Commissioner's findings, including her assessment of witness credibility. Ultimately, my

decision—consistent with the reasoning of the Attorney General—rests on my analysis of the record and the inferences that I have drawn from that record.

Respondent prevails on his justification defense and is not guilty of Specification 1. For the reasons set forth by the Deputy Commissioner, he is not guilty of Specification 2.